



DECISION

Complaint No. : POS/ROK-100/(Khp)/2019

Name and address of the complainant : Mr. Muhammad Nawaz,
S/o Late Ghulam Rasool Birhmani,
R/o Abid Colony, Taluka & District Khairpur.

Name of the Agency Complained against : Irrigation Department

Name & Designation of Investigating Officer : **AHMED BAKHSH GHUMRO,**
Consultant / Incharge, Regional Office, Khairpur

Vetted by : **Dr. Syed Sharaf Ali Shah, Advisor-J**

Subject : **RESTORATION OF N.O.C DATED 08.05.2013, ALLEGEDLY CANCELLED ILLEGALLY BY THE EXECUTIVE ENGINEER, SOUTHERN DADU DIVISION.**

COMPLAINT

Mr. Muhammad Nawaz Birhmani, Mutawali of Qalandari Imam Bargah, Dadu, filed a complaint on 12.06.2019 stating that he applied to the Deputy Commissioner, Dadu for grant of a plot measuring 0-15 ghuntas lying vacant beside the Imam Bargah, where his house is located. The Deputy Commissioner forwarded the matter to the Mukhtiarkar Gothabad for necessary action, who in turn approached the Executive Engineer, Irrigation Southern Dadu Division for issuance of an NOC. The XEN issued NOC on 08.05.2013. He alleged that thereafter the Mukhtiarkar demanded a substantial bribe which he, being poor, could not pay. Consequently, the NOC was cancelled illegally by the SDO Irrigation vide letter dated 25.02.2016. He, therefore, sought the intervention of this Institution.

PROCEEDINGS

02. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), by condoning the delay in filing it, subject to submission of an Affidavit on Form "A" and a copy of the CNIC.

03. After completion of codal formalities, the matter was taken up with the Executive Engineer, Irrigation Southern Dadu Division on 02.07.2019 for comments. The Executive Engineer submitted his report on 16.07.2019 denying all allegations against the SDO and Head Clerk. He stated that the NOC was cancelled because the complainant was occupying government land and constructing shops illegally and mala fide, in violation of the NOC conditions. It was further reported that the complainant was in the habit of filing applications against the Department and had filed a Civil Suit No. 46/2016 before the Senior Civil Judge, Dadu.

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04. The Agency's report was shared with the complainant on 03.09.2019 for rejoinder. In his rejoinder dated 18.09.2019 the complainant alleged that the signature of the Executive Engineer on the cancellation letter was forged and fraudulently managed by Head Clerk Muhammad Ramzan Memon. He requested forensic examination of the signature and prosecution of the Head Clerk. He further alleged that a bribe of Rs. 300,000/- had been demanded, and upon his refusal the NOC was cancelled without following due process or issuing notice. He also requested that the Mukhtiarkar be summoned for verification of facts.

05. On 01.10.2019, further comments were called from the Executive Engineer on the complainant's rebuttal. He was also asked to appear along with the AEN and the Head Clerk before the Investigating Officer. In response, the Executive Engineer appeared on 10.11.2025 and submitted further comments along with copies of the dismissal order in F.C. Suit No. 46/2016. He reaffirmed that the complainant was found constructing shops on government land in violation of the NOC, leading to its cancellation by the then Executive Engineer.

FINDINGS

06. The record shows that the complainant did not disclose at the time of filing the present complaint that he had earlier filed Civil Suit No. 46/2016 regarding the same subject matter, and that the said suit had been dismissed by the Senior Civil Judge, Dadu on 18.05.2019. This material concealment adversely affects his credibility. Accordingly, the complaint is found to be devoid of merit and is liable to be rejected.

DECISION

07. In view of the above, the complaint is **rejected** and consigned to record.

"Given under my hand and seal of office"



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh
Karachi, dated 11th December, 2025